

25TRCV03903 25TRCV03903

County: los-angeles

Division: Civil Law and Motion

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Case Number: 25TRCV03903 Hearing Date: September 8, 2026 Dept: E

Superior Court of California

County of Los Angeles

Southwest District

Torrance Dept. E

GREGORY

P. BODEN, RACHEL E. BODEN, individually and as Trustees of The Boden Family

Trust dated April 27, 2021

Plaintiff,

Case No.:

25TRCV03903

vs.

[Tentative]

Denied

HISSANKA

SALINTHA GUNASEKARA,

HARSHINI

GUNASEKARA and Does 1 through 10, inclusive

Defendant.

Hearing

Date: September
9, 2026

Moving Parties: Defendants Harshini Gunasekara and Hissanka
Gunasekara

Responding Party: Plaintiffs
Gregory and Rachel Boden

HEARING: Motion for Reconsideration

The Court considered the moving,
opposition, and reply papers.

RULING

The
Court denies the Motion for Reconsideration.

BACKGROUND

On

November 14, 2025, Plaintiffs Gregory and Rachel Boden filed the Complaint
against Defendants Harshini

Gunasekara and Hissanka Salintha Gunasekara alleging causes of action for
violation of the Good Neighbor Fence Act of 2013, economic damage to real
property, trespass, negligence, IIED, and NIED.

On March 17, 2026, the Court entered
the Defaults of Defendants Harshini Gunasekara and Hissanka Salintha
Gunasekara.

On June 8, 2026, the Court denied Defendants'
Motion to Set Aside Default.

On June 16, 2026, Defendants filed

the Motion for Reconsideration.

On August 13, 2026, Plaintiff filed
the Opposition.

On August 18, 2026, Defendants filed
the Reply.

LEGAL STANDARD

Code of Civil Procedure § 1008 provides, in
pertinent part:

“(a) When an application for an order has been
made to a judge, or to a court, and refused in whole or in part, or granted, or
granted conditionally, or on terms, any party affected by the order may, within
10 days after service upon the party of written notice of entry of the
order and based upon new or different facts, circumstances, or law, make an
application to the same judge or court that made the order, to reconsider the
matter and modify, amend, or revoke the prior order. The party making the
application shall state by affidavit what application was made before, when and
to what judge, what order or decisions were made, and what new or different
facts, circumstances, or law are claimed to be shown.

(b) A party who originally made an application
for an order which was refused in whole or in part, or granted conditionally or
on terms, may make a subsequent application for the same order upon new or
different facts, circumstances, or law, in which case it shall be shown by
affidavit what application was made before, when and to what judge, what order
or decisions were made, and what new or different facts circumstances, or law
are claimed to be shown. For a failure to comply with this subdivision, any order
made on a subsequent application may be revoked or set aside on an ex parte
motion.

...

(e) This section specifies the court's
jurisdiction with regard to applications for reconsideration of its orders and
renewals of previous motions, and applies to all applications to reconsider any
order of a judge or court, or for the renewal of a previous motion, whether the

order deciding the previous matter or motion is interim or final. No application to reconsider any order or for the renewal of a previous motion may be considered by any judge or court unless made according to this section."

(Code Civ. Proc. § 1008 subds. (a), (b), (e).)

DISCUSSION

Defendants request that the Court reconsider its decision to deny their Motion to Set Aside Default.

Defendants argue that counsel, rushing to file the motions to set aside before a default judgment, inadvertently omitted two controlling authorities, *LaSalle v. Vogel* (2019) 36 Cal.App.5th 127 and *Shapell Social Rental Properties, LLC v. Chico's FAS, Inc.* (2022) 85 Cal.App.5th 198 that are directly on point because each involved attorneys who took a default against defendants known to have retained counsel and each resulted in reversal. (*LaSalle v. Vogel* (2019) 36 Cal.App.5th 127; *Shapell Social Rental Properties, LLC v. Chico's FAS, Inc.* (2022) 85 Cal.App.5th 198.) Defendants contends that an attorney has an ethical and statutory obligation to warn known opposing counsel of an intent to seek a default and to allow a reasonable opportunity to respond. (*Fasuyi v. Permatex, Inc.* (2008) 167 Cal.App.4th 681, 701 through 702.)

Defendants argue these authorities apply to undisputed facts, contending that counsel was retained on March 4, 2026, and repeatedly emailed Plaintiffs on March 4, 9, 13, and 18, 2026, to advise of the representation, request an extension, note improper service on Defendant Hissanka Gunasekara, and report the filing of an Answer and Cross-Complaint, yet Plaintiffs did not respond until March 27, 2026, when they disclosed they had obtained a request for default.

Defendants further argue that the Answer and Cross-Complaint were file-stamped and accepted on March 17, 2026, the same day default was entered and before Plaintiffs notified defense counsel, so the Court entered default without knowledge of the filed pleading.

Defendants argue that no prejudice would result from reversal because only slight evidence is required where the defendant moved promptly, and the

opposing party shows no prejudice. (*Elston v. City of Turlock* (1985) 38 Cal.3d 227, 233.) Defendants emphasize that Plaintiffs are self-represented, that no default judgment has been entered, that no trial has been set, that no discovery has occurred, and that the underlying fence dispute has been cured and Plaintiffs compensated. Finally, Defendants argue that the authority the Court relied on is distinguishable because forty days elapsed before default and the motion to set aside came nearly five months later, unlike here, where counsel gave notice of the representation and filing well before Plaintiffs sought default. (*Iott v. Franklin* (1988) 206 Cal.App.3d 521, 528.)

In opposition, Plaintiffs contend that Defendants fail to meet the threshold requirements of Code of Civil Procedure section 1008 because they offers no new fact or law. Plaintiffs argue that new facts are those the moving party could not have produced earlier with reasonable diligence, that facts known at the time of the original ruling are not new or different, and that new law means a change in governing law after the ruling rather than pre-existing authority counsel failed to cite. (*Garcia v. Hejmadi* (1997) 58 Cal.App.4th 674, 690.) Plaintiffs contend that the matters Defendants now raise, including his further explanation and utility bills, were always in his possession, and that the cases he cites were decided years before his original motion and are not new law. (*New York Times Co. v. Superior Court* (2005) 135 Cal.App.4th 206, 212.)

Plaintiffs argue that *Le Francois* does not aid Defendants because the power to reconsider on the court's own motion belongs to the court alone, and by inviting that inherent authority, Defendant concedes his motion does not satisfy section 1008. (*Le Francois v. Goel* (2005) 35 Cal.4th 1094, 1107-1109.)

Plaintiffs further argue that Defendants ignored their default warning and that the two cases he cites do not disturb the ruling because they require only that counsel warn of an intent to seek default, a warning Plaintiffs gave, and because a lack of notice alone does not compel reversal absent independent grounds for relief under section 473, subdivision (b). Plaintiffs contend both cases are distinguishable because relief in the first rested on excusable neglect and factors absent here, and the second turned on improper service designed to keep the defendant in the dark. (*LaSalle v. Vogel*, *supra*, 36 Cal.App.5th 127, 139; *Shapell Socal Rental Properties, LLC v. Chico's FAS, Inc.*, *supra*, 85 Cal.App.5th 198, 216-217.)

Plaintiffs contend that the default resulted from inexcusable neglect that the new excuses do not alter, contending that the controlling authority treats an attorney who assumes an unanswered extension request was granted as inexcusably negligent, and that Defendants' delay in retaining counsel and gathering documents fell below the conduct of a reasonably prudent person.

Plaintiffs also argue that service was proper because the registered process server's declaration created a presumption of valid service that Defendant's evidence does not rebut. (*Floveyor International, Ltd. v. Superior Court* (1997) 59 Cal.App.4th 789, 795.) Finally, Plaintiffs argue that prejudice is irrelevant in the face of inexcusable neglect because a court may not set aside a default based on inexcusable neglect simply because the other side has not been prejudiced. (*Carroll v. Abbott Laboratories, Inc.* (1982) 32 Cal.3d 892, 900.)

A motion for reconsideration brought under Code of Civil Procedure section 1008 must be based on "new or different facts, circumstances, or law." (Code Civ. Proc., § 1008, subd. (a).) This requirement also necessitates a showing of why the new law or facts could not have been brought earlier. (*Baldwin v. Home Savings of America* (1997) 59 Cal.App.4th 1192, 1199-1200.) Here, Defendant has provided no showing of why the facts and law he now presents could not have been brought at the original hearing. Thus, the Court cannot reconsider its ruling under section 1008.

While the Court may reconsider its interim rulings sua sponte under *Le Francois*, a court may not consider new evidence that a party has failed to justify under section 1008. (*New York Times Co. v. Superior Court* (2005) 135 Cal.App.4th 206, 212-215; *Le Francois*, supra, 35 Cal.4th 1094, 1107-1109.) Furthermore, the newly cited decisions do not persuade the Court, as *LaSalle* and *Shapell* do not dispense with the requirement that Defendant show excusable neglect, and counsel's repeated correspondence with Plaintiffs does not change that result, as assuming that an unanswered request for an extension had been granted constitutes inexcusable neglect. (*Shapell*, supra, 85 Cal.App.5th at p. 216; *Iott*, supra, 206 Cal.App.3d 521, 532.) Thus, because its prior ruling was not erroneous, the Court sees no basis to reconsider it under *Le Francois*. Last, in his Reply, Defendants argue for the first time that the Court erred in failing to grant mandatory relief. However,

the Court will not consider an argument raised for the first time in a Reply. (Reichardt v. Hoffman (1997) 52 Cal.App.4th 754, 764.)

Therefore, the Court
denies the Motions for Reconsideration.